

M/s S.R. Preservation Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 30 May 2018 · WRIT - C No. 59704 of 2016 · **Writ dismissed as withdrawn; interim deposits adjusted against bills.**

HEADNOTE

A writ challenging a licensee demand of Rs. 20,20,306 was dismissed as withdrawn after the consumer elected to pursue any remedy under the U.P. Electricity Supply Code, 2005. Sums paid under interim orders were to be adjusted against pending bills. The demand was not examined on merits.

FACTUAL SUMMARY

M/s S.R. Preservation Pvt. Ltd. challenged a demand of Rs. 20,20,306 raised by the distribution licensee. On 19 December 2016 the Court recorded that the Executive Engineer had prima facie not complied with its earlier order of 3 October 2016 in Writ Petition No. 47031 of 2016, directed the petitioner to deposit Rs. 10 lakh (deposited on 26 December 2016) to avoid disconnection, and called the Engineer to justify the demand. After adjournments the writ was heard on 30 May 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

withdrawal to Supply Code remedy

HOLDING

After the petition was heard at some length, the consumer was permitted to withdraw the writ so as to avail any remedy under the U.P. Electricity Supply Code, 2005. The petition was dismissed as withdrawn. Payments made under the Court's interim orders were directed to be adjusted against pending bills. The demand of Rs. 20,20,306 was not adjudicated. ¶ 30.5.2018

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE DEMAND OF RS. 20,20,306 AND ALLEGED NON-COMPLIANCE WITH THE ORDER DATED 03.10.2016 IN WRIT PETITION NO. 47031 OF 2016

Left open by withdrawal; petitioner elected a Supply Code remedy. ¶ 19.12.2016, 30.5.2018